

FORM 4 — APPLICATION IN EXISTING PROCEEDINGS

Industrial Relations (Tribunals) Rules 2011 — rule 4(2)

QUEENSLAND INDUSTRIAL RELATIONS COMMISSION

Workers' Compensation and Rehabilitation Act 2003 (Qld)

Matter No: WC/2024/227

CORY LEA SHEPHERD (Appellant / Applicant) and WORKERS' COMPENSATION REGULATOR
(Respondent)

Non-party to whom this application relates: METRO SOUTH HOSPITAL AND HEALTH SERVICE

APPLICATION FOR A DECISION ABOUT OBJECTION — RULE 64G(1) — AND INTEGRATED OUTLINE OF SUBMISSIONS

A. Application and Orders Sought

1. By correspondence dated 5 June 2026, signed by its Chief Executive and provided in accordance with the direction issued from the Chambers of Commissioner Dwyer on 22 May 2026, Metro South Hospital and Health Service ("MSH") responded to the Appellant's Form 29 Notice of Non-Party Disclosure sealed 22 April 2026 ("the Notice"). The response complies with six Items; states that documents responsive to seven further Items do not exist or are not in MSH's possession; and objects under rule 64E(4) of the *Industrial Relations (Tribunals) Rules 2011* ("the Rules") to the remainder. This application accepts the greater part of that response. It asks the Commission to decide only the objections that remain, on terms the Appellant has himself narrowed (in one instance to the very scope MSH proposed), and to require verification of one answer that a document already before the Commission contradicts.
2. TAKE NOTICE that the Appellant applies under rule 64G(1) for the following orders:
 - (a) the objections to Items 3(a), 3(b), 8, 9, 10 and 19 of the Notice are overruled, and MSH is to produce the documents described in **Schedule A** (items 1 to 6) within fourteen (14) days of the order;
 - (b) MSH is to produce within fourteen (14) days the spreadsheet of recorded MET calls for the period 17–18 March 2024 identified in its response to Items 1 and 2, against which no ground of objection is raised;
 - (c) pursuant to rule 64G(2), MSH is to verify by affidavit of an officer with direct knowledge of the searches undertaken, within fourteen (14) days, its statements that documents responsive to Items 1–2 (non-retention following the SPOK upgrade), 3(c), 4, 5, 7, 14 and 20 do not exist or are not in its possession or control, identifying in each case the systems searched, the searches undertaken, and the basis for the statement, and, as to Item 14, the date on which a Queensland Health mobile device was issued to the Line Manager, and otherwise in the terms of order 6 of the accompanying draft order (including the governance-search particulars for Items 4, 5 and 7, the basis for any maintained non-possession as to Item 20 having regard to Annexure C, and the process references for the Item 16 enclosures);
 - (d) as to Item 18, noting MSH's statement that the destruction of the record is conceded on the pleadings, production is not pressed upon MSH confirming that statement in the affidavit referred to in order (c);
 - (e) Items 12 (balance) and 17 of the Notice are not pressed, in light of the privacy considerations MSH has raised;
 - (f) each party bear its own costs of the application, in accordance with rule 64G(3); and
 - (g) such further or other orders as the Commission considers appropriate.

B. Jurisdiction and Timeliness

3. The Notice was sealed by the Industrial Registry on 22 April 2026 and served on MSH by email at 5:08 PM that day. By direction issued from Chambers on 22 May 2026 (in effect, leave under rule 64E(1) for

objection at a later time), MSH was directed to provide any objections by 4:00 PM on 5 June 2026. MSH's objection was served by email at 3:02 PM on 5 June 2026. Rule 64G(1) permits this application within seven days after service of the objection; it is made within that period. Rule 64F stays the Notice as to the documents objected to; this application brings the stayed Items before the Commission for decision.

C. The Character of MSH's Response

4. The response falls into three categories. **First, compliance:** MSH has produced documents responsive to Items 6, 11, 12 (in part), 13, 15 and 16. That compliance is acknowledged; the enclosed records materially advance the appeal. **Secondly, answers:** for Items 1–2, 3(c), 4, 5, 7, 14 and 20, MSH states that responsive documents do not exist or are not in its possession or control. Those are answers to the Notice rather than objections under rule 64E(4); they are addressed in Sections G and H. **Thirdly, objections:** for Items 3(a), 3(b), 8, 9, 10, 12 (balance), 17, 18 and 19, MSH objects on grounds of expense and inconvenience (rule 64E(4)(a)), relevance (4(b)), particularity (4(c)), privacy (4(e)) and effect on a person (4(f)). Of these nine, the Appellant presses six, each on narrowed terms, and does not press three. None of the objections is put on the basis that the documents do not exist.

D. The Role of the Non-Party and the Matter in Issue

5. Subdivision 7A allocates functions. The party issuing a notice must state in it the matter in issue (rule 64C(1)). The non-party's part is to produce (rule 64D) or to object on the grounds rule 64E(4) provides. Where an objection is contested, the decision belongs to the Commission (rule 64G). Nothing in the subdivision asks the non-party to settle the scope of the appeal, or to measure relevance against its own restatement of the issues. That involves no criticism of MSH, whose reading is naturally operational; but it frames what the Commission is asked to decide.
6. The standard the Rules apply is direct relevance: a notice may require production of documents directly relevant to a matter in issue in the proceeding. In practical terms, a document answers that standard where it is capable of tending to prove or disprove an allegation in issue, having regard to the matters pleaded and the issues those matters raise. Annexure B identifies, for each contested Item, the allegation the records tend to prove or disprove. Several objections instead test the Items against admissibility, or against the non-party's view of what the evidence will show; neither is the question at the disclosure stage.
7. Several of the objections proceed from such a restatement. The response treats the matter in issue, "as pleaded in the Notice", as confined to the "consecutive shifts of 17 to 18 March 2024", and tests each date range against that confined reading. The Notice states the matter in issue in materially wider terms: a psychiatric injury with onset in June 2024, sustained in the course of employment at the Logan Hospital Switchboard, in a de novo appeal in which the Appellant bears the onus of establishing the injury, including that the employment was a significant contributing factor to it, and that it did not arise out of reasonable management action taken in a reasonable way within s 32(5)(a) of the *Workers' Compensation and Rehabilitation Act 2003*. The consecutive shifts of 17–18 March 2024 are the keystone stressor; they are not the perimeter of the inquiry. The pleadings themselves sharpen the point: the Regulator's own Independent Review Office has found that the 7-hour rest break constituted unreasonable management action (Form 24, ¶37). A restatement that confines disclosure to 17–18 March 2024 confines it to the one event already the subject of that finding. On the pleadings and admitted facts presently before the Commission, the inquiry under s 32(5)(a) is broader than that single shift pairing; it extends to the course of conduct pleaded from June 2023 to June 2024, and the records sought bear directly on that broader inquiry.
8. There is a further reason the restatement does not govern relevance. To confine disclosure to the events a non-party considers caused the injury is to treat the non-party's opinion of causation as settled. The cause of a psychiatric injury is not a matter on which MSH, or any party, holds privileged insight; it is the question the appeal exists to decide. The degree, duration and density of the pleaded stressors are themselves facts in issue under s 32(5)(a): the reasonableness of management action, and the manner of its taking, fall to be weighed against the conduct's extent, not a single instance of it. The Notice seeks

records of fact; the objections that resist it proceed on assumptions about what those records are likely to show or not show. The Appellant's entitlement is correspondingly modest: to have the case as pleaded, including causation as pleaded, heard and determined on the evidence that bears upon it, not on a restatement that reduces it to a single shift pairing.

9. The onus intensifies, rather than diminishes, the necessity of production. On a de novo appeal the Appellant bears the onus of establishing each element of s 32(1) and of excluding s 32(5)(a). The reasonableness of the management action over the pleaded course, and the degree, duration and density of the conduct said to have contributed to the injury, are accordingly matters the Appellant must prove, going both to whether the employment significantly contributed to the injury and to whether the action was reasonable and reasonably taken. The contemporaneous records of that conduct exist, if at all, in the non-party's systems. A party required to prove the character of conduct cannot reasonably be left without the records of it, held solely by the author of that conduct; production allows the matters in issue to be determined on what the systems recorded rather than on contested recollection: a course that serves the parties and the Commission equally, whichever way the records fall. The burden objections have a force the Appellant accepts in part: some date ranges in the Notice were broad. Where that is so, a proportionate answer may lie in narrowed production on conditions rather than refusal; the Appellant has done the narrowing himself. Schedule A confines every contested Item by custodian, system and date before the Commission is asked to rule.

E. Expense, Inconvenience and the Delivery of Health Care

10. Each rule 64E(4)(a) objection states that compliance would detract from MSH's core function of providing health care; no order sought requires the Commission to weigh disclosure against patient care. The Schedule A terms confine every electronic search to identified corporate systems (a single Exchange mailbox custodian set, directory sign-in records, one access-control system), held by role-based custodians within defined windows, and performed by corporate and information services rather than clinical staff. That such searches are neither prohibitively expensive nor operationally disruptive is demonstrated, not merely asserted, by the Respondent's disclosure of 11 June 2026, addressed at Section G. Rule 64I entitles MSH to its reasonable expenses of production.
11. Nor is the subject matter of the Notice opposed to the value MSH invokes; it is, in significant part, the same value. The Appellant shares that concern; the operational complaints the subject of Items 3(a) and 3(b) were themselves directed to the safe operation of that function. The pleaded role is the coordination of Logan Hospital's life-safety emergency codes (Code Blue and MET calls) through the Switchboard, and the fatigue governance of that function during the pleaded period is within the matter in issue, not adjacent to it. Patient safety is therefore not a consideration weighing against production; it is among the matters the records evidence.

F. The Items Pressed

12. **Items 1 and 2 (order (b)).** MSH states the SPOK records were not retained following a system upgrade, but identifies "a spreadsheet of recorded MET calls" available for 17–18 March 2024. That spreadsheet does not appear among the enclosures. No ground of objection is raised against it; order (b) seeks its production.
13. **Items 3(a) and 3(b).** The ground is expense (rule 64E(4)(a)). The response states that all employee complaints concerning Switchboard operational errors are made directly to the Line Manager and managed by email or verbally. That account itself supplies the cure: a single-custodian, keyword-limited search of the Line Manager's mailbox over twelve weeks (Schedule A items 1 and 2), in place of the seven-month, multi-account search the objection describes. The burden of a search so confined is modest, and rule 64I meets its cost.
14. **Item 8.** The grounds are expense and particularity. The particularity point is accepted and cured: Schedule A item 3 identifies the system (Windows Active Directory / Microsoft Entra ID sign-in audit records) and a single named account, over a defined window spanning the operational complaints the subject of Items 3(a) and 3(b) and the lead-up to the pleaded onset. Sign-in audit records are extracted by date-range query, not by review of content, so the window does not alter the character of the task. As to

expense, the passage in the response appears to have been carried across from the email-search objections: it describes reviewing “individual staff member email accounts”, which Item 8 does not seek. A directory sign-in export for one account is a standard administrative query against existing audit records.

15. **Item 9.** The grounds are relevance, particularity and effect on a person (rule 64E(4)(b), (c), (f)). The response clarifies that the Switchboard has no dedicated swipe access but is collocated within an access-controlled office area; the Appellant accepts that clarification and re-specifies the Item accordingly (Schedule A item 4). As to relevance, the records serve four connected purposes: the Form 24 admissions place the seven-hour break between the consecutive shifts of 17–18 March 2024 at the centre of the s 32(5)(a) inquiry, and whether that action was taken in a reasonable way turns in part on what supervision was present when it occurred; and the Line Manager’s pattern of attendance across the period of the operational complaints, through to the pleaded onset, bears on the support available to the Switchboard while those complaints were being received, itself a component of the manner inquiry. Thirdly, the Amended Form 9A pleads as a material fact that the Line Manager “maintained an erratic physical presence” during the pleaded period (Part B, Stressor 1(a)); a record of attendance is the direct documentary answer to that pleaded fact. Fourthly, the window spans a further contested fact: the response admits the payroll instruction of 3 May 2024 and the submission of the AVAC on 28 May 2024 (Form 24, ¶¶40–41) while denying any want of diligence in the twenty-five days between them (¶¶47–49); the Line Manager’s attendance across that period is direct evidence on that contest. A record of workplace attendance, in the form sought here, is not intrinsically private in the way medical, financial or family information would be; the “effect on a person” the response anticipates is the ordinary effect of relevant evidence, which rule 64E(4)(f) does not exist to prevent. Documents produced may in any event be used only for the purposes of this proceeding, and for Items 8 and 9 the Appellant proposes the concrete regime in the accompanying draft order: production to the Registry marked confidential, inspection confined to the parties for the purposes of this proceeding, and non-responsive personal information redacted: a regime that materially reduces any legitimate concern. The relevance objection was, moreover, advanced expressly subject to MSH’s stated limitation in assessing relevance without the pleadings; Annexure B removes that limitation.
16. **Item 10.** The ground is expense. The Item is narrowed to the Line Manager and the Director as custodians, keyword-limited in the Notice’s own terms, over two months (Schedule A item 5). The ground is answered in the same way as for Items 3(a) and 3(b).
17. **Item 19.** The grounds are expense and effect (rule 64E(4)(a), (f)). MSH proposed the cure in its own response: narrowing to 17–18 March 2024, limited to emails received from Together Queensland by the Line Manager, the Director, or members of the Logan Hospital Human Resources team who remain employed by MSH. The Appellant adopts that proposal without amendment (Schedule A item 6). The draft order makes the Item 19 order subject to notice to Together Queensland, with liberty to apply.
18. **Item 20.** The response states that responsive documents do not exist because reference PID 24-ESU-1130 commenced in November 2024, outside the 13–31 May 2024 window. That is accepted so far as it goes: the reference number post-dates the events. The disclosures themselves are pleaded, and both their character as a Public Interest Disclosure and the immediate response to them are admitted (Form 24, ¶¶20–21). The Item is re-specified by subject matter rather than reference number (Schedule A item 7): records of operational or human-resources action during 13–31 May 2024 responsive to the disclosures the Appellant made in that period. Properly understood, the Item always sought that subject matter: the contemporaneous operational and human-resources response within MSH, during 13–31 May 2024, to the disclosures the Appellant made in that period. The reference number, which on MSH’s own answer was assigned only in November 2024, was descriptive, not definitional; an item is not sensibly confined to a reference that did not exist during the period the item addresses. That such records exist is established by the Respondent’s disclosure of 11 June 2026, addressed in Section G below. Annexure C accordingly demonstrates that the non-existence answer was mistaken, incomplete, or based on an unduly narrow construction of the Item as originally framed; Because MSH answered the Item rather than objecting to it under rule 64E(4), the primary relief sought is verification: the affidavit in the accompanying draft order

is to state, should non-possession be maintained, the precise basis on which it is maintained having regard to the correspondence at Annexure C. Should the Commission be satisfied that the Item, properly understood, sought the re-specified subject matter at Schedule A item 7, the Appellant respectfully invites an order for production on those terms under the further-orders limb (order (g)); the documents the Annexure evidences are, on their face, already assembled.

G. The Respondent's Disclosure of 11 June 2026

19. On 11 June 2026 the Respondent disclosed to the Appellant documents which, on its own description, were “received through Notice of Non-Party Disclosure request and conferencing”. That disclosure bears directly on the objections now before the Commission, and the Appellant relies on it as part of the material on this application (Annexure C). **First, it establishes that records sought by the Notice exist.** Among the documents disclosed is internal MSH correspondence of 15 and 16 May 2024 routing the Appellant’s disclosures within Logan Hospital Human Resources and to the Director, recording that the Ethical Standards Unit’s assessment was on foot. That is operational and human-resources action taken during the 13–31 May 2024 window, by the custodians identified in Schedule A item 7: precisely the subject matter of Item 20, to which MSH answered that documents do not exist. The correspondence originates from MSH human-resources officers within Logan Hospital; it is accordingly within MSH’s own systems, or accessible to it through Queensland Health records infrastructure. The answer is difficult to reconcile with the document and requires explanation, whether by production or affidavit verification.
20. **Second, it establishes that production is neither prohibitively expensive nor operationally disruptive.** The documents disclosed are of the same character as a number of the email-based and administrative Items to which MSH objects on the ground of expense (internal email correspondence held by identified custodians, and complete records of administrative processes), assembled and produced through ordinary means; and rule 64I in any event provides for MSH’s reasonable expenses of compliance to be met. Where the same documents, held by the same custodians, have already been gathered and provided in this proceeding, an objection that gathering them is unduly burdensome is difficult to sustain; and rule 64B(2) is not engaged, there being no other reasonably simple and inexpensive way for the Appellant to prove matters that sit only with the non-party. **Third, it confirms the breadth of the matter in issue.** The disclosed material concerns mid-May 2024, two months before onset, and outside the “consecutive shifts of 17 to 18 March 2024” to which MSH would confine relevance. That the Respondent itself treats it as disclosable is inconsistent with the confined reading on which the objections depend.

H. Verification of the Non-Existence Answers

21. For Items 1–2 (non-retention), 3(c), 4, 5, 7, 14 and 20, MSH answers that documents do not exist or are not in its possession or control. The Appellant does not suggest those answers are other than honestly made. They are, however, presently statements in correspondence: unsworn, and in several instances statements on which the conduct of the appeal will rest. Rule 64G(2) empowers the Commission to make any order it considers appropriate; an order that the answers be verified by affidavit, identifying the systems searched, the searches undertaken and the basis for each statement, is a conventional and proportionate way of giving them a form on which the parties and the Commission can act.
22. Verification has particular utility for the fatigue-management Items. The response states, for Items 4 and 7, that Fatigue Risk Management System training applies only to health practitioners and clinical assistants, so that no such requirement applied to Switchboard staff; and, for Item 5, that fatigue risk management assessment was implemented at the Switchboard after 30 June 2024. Each statement may be accurate. Read together, they tend to indicate that no fatigue-management requirement applied to Switchboard staff before 30 June 2024, a period that includes the consecutive shifts of 17–18 March 2024 and the pleaded onset of the injury. The records the Items seek go to the manner in which the rostering decisions were taken (whether any fatigue-management requirement governed the function within which those decisions were made), and not merely to whether fatigue caused the injury; the latter is a medical question, but the former is a question about the manner of the management action, squarely within s 32(5) (a). The verifying affidavit should therefore identify the governance registers, policy repositories and

training records searched in connection with Items 4, 5 and 7, the result of those searches, and whether those searches identified any fatigue risk management training requirement, fatigue risk management assessment process, or other fatigue-management requirement applying to Logan Hospital Switchboard staff before 30 June 2024. For Item 14, the verifying affidavit should state the date on which a Queensland Health device was issued to the Line Manager and confirm whether any responsive communications exist on MSH systems. The affidavit should also identify the process references to which the Item 16 enclosures correspond: the Notice cited references 15397775 and 15605601, and the Item 11 report for 1 February to 31 May 2024 lists neither. The references cited in the Notice were drawn from records provided to the Appellant; the discrepancy lies within MSH's own production, and the affidavit is the means of resolving it.

I. Items Not Pressed; the Pleadings Point

23. The Appellant does not press the balance of Item 12 or Item 17. The privacy considerations MSH raises (sensitive health information of other staff, and re-identification risk within a small team) are genuine; the audit trail and variance records already produced serve the comparator purpose. Nor does the Appellant press production under Item 18: MSH objects on the footing that the destruction of the record "appears to have already been conceded" on the pleadings, and the Appellant is content to proceed on that concession, confirmed in the affidavit referred to in order (c).
24. The response renews the observation that MSH has not received the Appellant's Amended Form 9A, and submits its capacity to assess relevance was limited. Rule 64C(1) requires the notice to state the matter in issue, and this Notice does so; the objections MSH has in fact articulated, ground by ground, demonstrate that it conveyed what the rule requires. In any event the point is spent: the Appellant provides at **Annexure B** a Relevance Map setting out, for each contested Item, the pleaded matter and the Form 24 admission to which it answers, and will provide a sealed copy of the Amended Form 9A on request or as the Commission directs. No contested Item falls to be decided on an asserted inability to assess relevance.

J. Disposition, Material and Service

25. The orders sought confine production to documents a non-party can extract through standard administrative processes, within defined date windows, with reasonable expenses met under rule 64I, and with the privacy objections accommodated by the withdrawal of the Items that engaged them. The application is brought to narrow the field, not to enlarge it: the greater part of the Notice is resolved by MSH's compliance, by its answers, and by the Appellant's withdrawals, and what remains is confined by Schedule A to a materially narrower set of documents than the Notice as originally served sought. The Appellant relies upon the Notice, the direction of 22 May 2026, MSH's correspondence of 5 June 2026 (with enclosures) and the Respondent's Statement of Facts and Contentions (Form 9C), each already before the Commission, together with the Relevance Map at Annexure B and the extract of the Respondent's disclosure of 11 June 2026 at Annexure C. This application is to be served on the Respondent and on MSH (attention: Principal Lawyer, Metro South Legal Services), and the Appellant will give notice of order (a), so far as it concerns Item 19, to Together Queensland. A draft of the orders sought (including the Items 8–9 confidentiality regime, the Together Queensland notice mechanism, and liberty to apply as to mechanics) accompanies this application. The Appellant is content for the application to be determined on the papers, and seeks orders in the terms of the draft.

Name: Cory Lea Shepherd

Address for service: 15 Edmond Street, Coomera QLD 4209 Email: coryshepherd1@hotmail.com

Telephone: 0417 400 227

Dated: 12 June 2026

A handwritten signature in black ink, appearing to be 'CL' or 'CS' with a long, sweeping underline.

CORY LEA SHEPHERD, Appellant (Self-Represented)

SCHEDULE A — TERMS OF PRODUCTION

In this Schedule, “the Line Manager” and “the Director” bear the meanings given in the Notice. Production is to be in native electronic format where the record is electronic, within fourteen (14) days of the order. The exclusions stated in the Notice, including those for legal professional privilege, for material attracting section 65 of the *Public Interest Disclosure Act 2010* (Qld), and for personal contact details, apply to each item in this Schedule. Item 7 states the terms on which production under Item 20 is sought by way of alternative relief (see paragraph 18 of the application).

No.	Item	Terms of production ordered
1	Item 3(a)	A server-side export from the Exchange mailbox of the Line Manager, Logan Hospital Switchboard, of email complaints concerning Logan Hospital Switchboard operational errors, limited to the keyword terms stated in Item 3(a) of the Notice, for the period 1 February 2024 to 30 April 2024.
2	Item 3(b)	Email correspondence between the Line Manager and the Director discussing complaints of the kind described in Item 3(a), limited to the keyword terms stated in Item 3(b) of the Notice, for the period 1 February 2024 to 30 April 2024.
3	Item 8	A native electronic export of Windows Active Directory / Microsoft Entra ID sign-in audit records for the network account assigned to the Line Manager, for the period 1 March 2024 to 30 June 2024 inclusive.
4	Item 9	A native electronic export of transaction logs from the electronic access-control (swipe-card) system serving the access-controlled office area within which the Logan Hospital Switchboard is collocated, limited to the credential(s) assigned to the Line Manager, for the period 1 March 2024 to 30 June 2024 inclusive.
5	Item 10	The documents described in Item 10 of the Notice, limited to the Line Manager and the Director as custodians and to the keyword terms stated in the Notice, for the period 1 March 2024 to 30 April 2024.
6	Item 19	Emails received from Together Queensland on 17 or 18 March 2024 by the Line Manager, the Director, or members of the Logan Hospital Human Resources team who remain employed by Metro South Hospital and Health Service, in the terms proposed at page 5 of MSH’s response of 5 June 2026.
7	Item 20	Documents recording operational or human-resources action taken during the period 13 May 2024 to 31 May 2024 (including any such action taken by, or reported to, the Director or members of the Logan Hospital Human Resources team) in response to disclosures made by the Appellant to MSH, the Logan Hospital Human Resources function, or the Ethical Standards Unit during that period, concerning workplace safety or workplace conduct at the Logan Hospital Switchboard.

ANNEXURE B — RELEVANCE MAP

This Annexure sets out, for each contested Item in Schedule A, the pleaded matter in the Appellant’s Amended Statement of Facts and Contentions (Form 9A) filed 8 April 2026, and the admission or record to which the Item answers: the allegation in issue the records tend to prove or disprove. It reproduces, in summary form, the Relevance Anchor Table within the Notice, updated to the narrowed terms of Schedule A. Form 24 references are to the Respondent’s admitted facts.

Sch. A item	Pleaded matter — Amended Form 9A (filed 8 April 2026)	Admission / record anchor	Element engaged
1 – Item 3(a)	Operational complaints concerning Switchboard errors; prior formal complaints regarding these exact fatigue risks — Part B, Stressor 1(a), 1(c), 3(b)	Form 24, ¶5 (grievance of 7 August 2023 dismissed the same day); MSH response of 5 June 2026: all such complaints are made directly to the Line Manager by email or verbally	Degree, duration and density of the pleaded stressors; the extent of the conduct against which reasonableness is weighed — s 32(5)(a)
2 – Item 3(b)	Management knowledge of, and response to, the complaints pleaded — Part B, Stressor 1(a), 1(c)	Form 24, ¶5; Line Manager to Director is the pleaded channel of escalation	Whether management action was taken, and taken in a reasonable way — s 32(5)(a)
3 – Item 8	The Line Manager’s “erratic physical presence” and the supervision available during the pleaded period — Part B, Stressor 1(a); consecutive shifts — Stressor 3(a)	Form 24, ¶1 (consecutive shifts of 17–18 March 2024; 7-hour break); ¶37 (IRO finding: contents admitted, relevance reserved to the Commission); ¶¶42–45 (pay-disparity denial: “the roster was equitable”); ¶¶40–41 (payroll instruction 3 May 2024; AVAC submitted 28 May 2024) against the denials at ¶¶47–49	Manner of the management action; supervision present when the admitted action occurred — s 32(5)(a)
4 – Item 9	As for Item 8: a record of attendance is the direct documentary answer to the pleaded “erratic physical presence” — Part B, Stressor 1(a)	Form 24, ¶¶1, 37, 40–41, 47–49: as above	Manner inquiry; support available to the Switchboard during the pleaded period — s 32(5)(a)
5 – Item 10	Management discussion of Switchboard operations and staffing; payroll failures of February–April 2024 — Part B, Stressor 1(a), 2(a)	Form 24, ¶¶40–41 record the sequel: the payroll directive of 3 May 2024 and the admitted 25-day delay	Reasonableness and manner of management action over the pleaded period — s 32(5)(a)
6 – Item 19	Suppression of union representation during the roster disputes; contemporaneous union communications during the keystone shifts — Part B, Stressor 1(g)	Form 24, ¶¶17–18 (Union Encouragement Policy QH-POL-248; delegate interest from April 2023); terms proposed at page 5 of MSH’s response, adopted without amendment	Management knowledge at the time of the admitted consecutive shifts — s 32(5)(a)
7 – Item 20	Disclosures of 13–31 May 2024 and the immediate response to them — Part B, Stressor 1(e)–(f)	Form 24, ¶20 (determination as a Public Interest Disclosure); ¶21 (retraction direction within 48 hours); Respondent’s disclosure of 11 June 2026: MSH HR routing correspondence of 15–16 May 2024 (Annexure C)	Operational response to the pleaded disclosures in the period preceding onset — ss 32(1), 32(5)(a)

ANNEXURE C

Extract from the Respondent's disclosure to the Appellant of 11 June 2026 (provided by the Respondent's Senior Appeals Officer)

Renee Matheson

From: Elise McGinley <Elise.McGinley@health.qld.gov.au>
Sent: Thursday, 16 May 2024 11:43 AM
To: Tammy Reese; Tracey Smith
Cc: Brendon Punch; Mack Pritchard; Adriana McNamee
Subject: FW: Urgent: Issues Affecting Workplace Safety and Conduct Logan Hospital Switchboard
Attachments: Chloe Taylor scc-complaint-form.docx

Hi Tammy and Tracey,

Please see below email and attached complaint from Cory Shepherd.

Cory sent his complaint directly to the Ethical Standards Unit who are currently awaiting further documentation from him.

Once ESU have received all of the information and finalised their assessment we will reach out to discuss next steps.

Kind regards
Elise

Elise McGinley

A/Senior Consultant

Human Resources

Logan and Beaudesert Health Service

[Metro South Health](#) | 

e. Elise.McGinley@health.qld.gov.au

(07) 2891
p. 5903 | Mon - Fri



Metro South Health recognises and pays respect to the traditional custodians of the land and waters – the Yugambeh, Quandamooka, Jaggera, Ugarapul, and Turrbal peoples – and to Elders, past, present, and emerging.

From: LBH_HR
Sent: Wednesday, May 15, 2024 3:41 PM
To: Brendon Punch ; Elise McGinley ; Adriana McNamee
Subject: FW: Urgent: Issues Affecting Workplace Safety and Conduct Logan Hospital Switchboard

Please see email from Corey Shephard to ESU and CO Complaints regarding Chloe Taylor.

Thanks

Michelle Harrison

Support Officer

Human Resources

Logan and Beaudesert Health Services